

CHAPTER 277

WATER HYACINTH

An Ordinance to make provision to prevent the introduction into, and dissemination in, Sri Lanka of the plant known as the water hyacinth.

Ordinance	Na 4 of 1909.
Date	[20th March, 1909.]

Short title.

1. This Ordinance may be cited as the Water Hyacinth Ordinance.

Interpretation.

1. In this Ordinance the expression "the water hyacinth" means the plant botanically known as *Eichhornia crassipes*, and includes the seed and every part of the plant.

Prohibition of importation or possession of water hyacinth.

1. It shall be unlawful for any person—
 - (a) to import the water hyacinth into Sri Lanka; or
 - (b) to possess or keep the water hyacinth, or allow the same to grow in or on any place belonging to him or under his control or management.

Penalties.

1. Any person who—
 - (a) imports the water hyacinth into Sri Lanka; or
 - (b) possesses or keeps or allows the same to grow in any place belonging to him or under his control or management; or
 - (c) fails forthwith to destroy in manner prescribed by section 4 any water hyacinth which may be found growing in any such place as aforesaid,shall be guilty of an offence, and shall be liable on conviction thereof to a fine not exceeding one hundred rupees.

Primary Court has exclusive jurisdiction under section 33 of the Judicature Act read with Gazette Extraordinary No. 43/4 of 1979.07.02.

Power of customs officers to destroy plant on importation.

1. It shall be lawful for the principal officer of customs at any port at which any water hyacinth may be landed to destroy the same, and no person shall be entitled to any compensation for any water hyacinth so destroyed.
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Power to extend certain provisions to other noxious weeds or plants.

1. (1) It shall be lawful for the Minister by Order to declare that the provisions of this Ordinance—

(a) imposing a penalty on persons importing the said plant;

(b) empowering customs officers to destroy the said plant on importation,

shall extend to any noxious weed or plant specified in the Order and to the seed or any part of such plant.

(2) Upon such Order the above-mentioned provisions of this Ordinance shall apply, *mutatis mutandis*, to such weed or plant.
